Agenda Summary Min

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MINUTES OF A CITY COUNCIL MEETING

March 11, 2025

10:30 AM

Mayor Keeley opened the City Council Closed Session at 10:32 a.m. in a public meeting via Zoom and in Council Chambers, for the purpose of announcing the agenda, and receiving public testimony.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, City Attorney T. Condotti, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Statements of Disqualification - None.

Public Comment

Mayor Keeley opened the public comment period at 10:33 a.m. There were no speakers. Mayor Keeley closed the public comment period at 10:34 a.m., at which time the meeting was closed to the public and Council adjourned to the Courtyard Conference Room.

Closed Session

1. Conference with Legal Counsel - Existing Litigation (Government Code §54956.9(d)(1))

   GVC St. George, LLC v. City of Santa Cruz
   (United States District Court Case No.CV-07695-BLF)

Council received a status report, and took no reportable action.

Closed Session (continued)

2. Public Employee Performance Evaluation (Government Code §54957)

City Attorney

Council took no reportable action.

City of Santa Cruz
809 Center Street
Santa Cruz, California 95060

MINUTES OF A CITY COUNCIL MEETING
March 11, 2025

11:15 AM

Call to Order – Mayor Keeley called the meeting to order at 11:17 a.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton, City Attorney T. Condotti, Director of Public Works N. Nguyen, Chief of Police B. Escalante, Director of Planning and Community Development L. Butler, Chief of Fire R. Oatey (via Zoom), Director of Economic Development and Housing B. Lipscomb (via Zoom), Director of Finance E. Cabell (via Zoom), Director of Information Technology K. Morgan (via Zoom), Director of Water H. Luckenbach (via Zoom), Senior Planner T. Maier, Principal Transportation Planner C. Gallogly, Sustainability and Resiliency Officer T. Wise-West, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

At this time, Mayor Keeley rearranged the agenda to hear item 3.

Oral Communications Announcement - The Mayor provided a brief announcement about Oral Communications.

Oral Communications

At 11:24 a.m. Mayor Keeley opened Oral Communications for members of the public who wished to speak regarding items not listed on the City Council agenda.

Michael Spadafora spoke regarding the company contracted to complete the repairs on the Murray Street Bridge.

Unidentified person spoke regarding Trump's presidency.

Oral Communications (continued)

Unidentified person spoke regarding the San Mateo County Sheriff's Office and the Commission for the Prevention of Violence Against Women.

Gregg Cole spoke regarding Three Prince Surf Park, and [redacted]ded Council with a draft resolution to provide access to the point of the c[redacted].

Javier Rivera, Katrina Tattenham, and Lauren Bogle spoke regarding Salsa by the Sea.

At 11:36 a.m. Mayor Keeley closed Oral Communications.

Presentations

3. Mayoral Proclamation Declaring April 2025 as Sexual Assault Awareness Month

Councilmember O'Hara read from and presented a proclamation to members of the Commission for the Prevention of Violence Against Women declaring April 2025 as Sexual Assault Awareness Month.

Presiding Officer's Announcements

Statements of Disqualification – None.

Additions and Deletions – City Clerk Administrator B. Bush announced item 13 was removed from the agenda and would be continued to a future meeting. Mayor Keeley announced item 16 was continued to the meeting of March 25th.

City Attorney Report on Closed Session – See pages 7843—7844 for the report.

Council Meeting Calendar

4. The City Council reviewed and did not revise the meeting calendar attached to the agenda.

Consent Agenda

Councilmember Newsome made a comment on items 7 and 12.

Councilmember Brunner made a comment on item 8.

Councilmember Trigueiro made a comment on item 9 and 12.

Mayor Keeley made a comment on item 8.

Consent Agenda (continued)

Mayor Keeley opened the public comment period. The following people spoke:

Unidentified person made a comment on item 6.

Unidentified person made a comment on item 12.

Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Councilmember Golder, to approve the Consent Agenda.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

5. Resolution Extending the Emergency Declaration in Connection with the December 2024 Municipal Wharf Emergency (CA/CM)

   LOCATION: District 4

   Resolution No. NS-30, 447 was adopted extending by sixty days the Local Emergency Declaration in connection with the December 2024 Municipal Wharf emergency.

6. Minutes of the February 25, 2025 City Council Meeting (CC)

   LOCATION: None

   Motion carried to approve as submitted.

Consent Agenda (continued)

7. Award Contract for National Oceanic and Atmospheric Administration (NOAA) Grant Administration Services for Coastal Restoration Projects (CM)

   LOCATION: Districts 1, 2, and 4

Motion carried to:

- Award a contract for professional grant administrative services to support the coastal restoration projects funded by a NOAA Coastal Resilience Regional Challenge Grant (Grant) to The Ferguson Group (TFG) in the amount of $799,500, reject all other proposals; and
- Authorize the City Manager to execute a contract, in a form approved by the City Attorney, with TFG. The Purchasing Manager is authorized to execute change orders within the approved budget.

8. 2025 Legislative Program (CM)

   LOCATION: Citywide

   Motion carried to adopt the 2025 Legislative Program.

9. 2024 Citywide Sewer/Storm Drain Lining Project (c401511) - Notice of Completion (PW)

   LOCATION: Citywide

   Motion carried to accept the work of Insituform Technologies, LLC. (Chesterfield, MO) as completed per plans and specifications, authorize the filing of the Notice of Completion for the 2024 Citywide Sewer/Storm Drain Lining Project (c401511), and authorize the Public Works Director to sign the Notice of Completion as the Owner's Authorized Agent.

Consent Agenda (continued)

10. City of Santa Cruz Resource Recovery Facility Appliance Recycler Services - Award of Contract (PW)

    LOCATION: District 6

    Motion carried to award the Appliance Recycler Services contract to Campos Bros. Recovery, Inc. (West Sacramento, CA). The City Manager is hereby authorized and directed to execute the contract in a form approved by the City Attorney, as authorized by Resolution No. NS-27,563. The Public Works Director is authorized to execute change orders within the approved project budget.

11. Active Transportation Plan (c402408) - Outreach Consulting Contract Amendment 1 (PW)

    LOCATION: Citywide

    Motion carried to approve Contract Amendment 1 with Ecology Action (Santa Cruz, CA) reducing the original contract to $53,186 for outreach consulting for the Active Transportation Plan Update and authorize the City Manager to execute the contract amendment in a form approved by the City Attorney. The Public Works Director is authorized to execute future contract amendments within the approved project budget.

12. Monterey Bay Sanctuary Scenic Trail (Rail Trail) Segment 7 Phase II Project (c401413) – Budget Adjustment (PW)

LOCATION: Districts 3 and 4

Resolution No. NS-30, 448 was adopted amending the FY 2025 budget to appropriate funds in the amount of $900,000 from Measure D to the Monterey Bay Sanctuary Scenic Trail (Rail Trail) Segment 7 Phase 2 (c401413).

13. Measure E Oversight Committee (PW)

LOCATION: Citywide

This item was removed from the agenda and was not discussed.

Consent Agenda (continued)

14. Resource Recovery Facility Enclosed Flare Installation Project (c402512) - Authorization to Ratify Purchase Order (PW)

LOCATION: District 6

Motion carried to ratify purchase order for the direct purchase of the enclosed flare, related equipment, shipping and startup with Perennial Energy LLC (West Plains, MO) at the Resource Recovery Facility in the amount of $1,023,314.01, in a form approved by the City Attorney. The Public Works Director is authorized to execute change orders within the approved project budget.

15. West Cliff Drive Bethany Curve Culvert Project (c402407) - Authorization to Ratify Purchase Order (PW)

LOCATION: District 6

Motion carried to ratify purchase order for additional work as outlined in the latest proposal from Pacific Crest Engineering (PCE) dated November 2024 for the West Cliff Drive Bethany Curve Culvert Project (c402407) and authorize the City Manager to execute the contract amendment in a form approved by the City Attorney. The Public Works Director is authorized to execute change orders within the approved project budget.

16. Modifications to City Council Forest Management Policies for Water Department Watershed Lands (WT)

LOCATION: Citywide

This item was continued to the meeting of March 25th and was not discussed.

End Consent Agenda

Consent Public Hearing

Councilmembers O'Hara and Trigueiro made a comment on item 17.

Mayor Keeley opened the public comment period. The following person spoke:

Unidentified person made a comment on items 17, 18, and 20.

Mayor Keeley closed the public comment period.

Mayor Keeley made a comment on item 20.

MOTION: Councilmember Golder moved, seconded by Vice Mayor Kalantari-Johnson, to approve the Consent Public Hearing Agenda.

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro (with the exception of item 17), Brunner, Newsome, Golder, O'Hara (with the exception of item 17); Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	Councilmembers Trigueiro (item 17), O'Hara (item 17).
ABSENT:	None.
DISQUALIFIED:	None.

17. 2nd Reading and Final Adoption of Ordinance No. 2025-03 Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN)

    LOCATION: Citywide

    Ordinance No. 2025-03 was adopted amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and adding objective standards to both chapters.

Consent Public Hearings (continued)

18. 2nd Reading and Final Adoption of Ordinance No. 2025-04 Minor Modifications to the Previously-Adopted Amendments to Chapter 18.15 of the Municipal Code Requiring Additional Energy Standards for Alterations and Additions to Existing Single Family Homes (CM/PL)

    LOCATION: Citywide

    Ordinance No. 2025-04 was adopted making minor changes to the previously-adopted Municipal Code Chapter 18.15 which adopted local amendments to Title 24, Part 6 of the California Code of Regulations (California Energy Code). Council finds the amendments are consistent with the Negative Declaration approved for the City of Santa Cruz 2030 Climate Action Plan adopted by City Council on September 13, 2022. The ordinance is also exempt under exempt from CEQA under the general rule, 15061(b)(3) and per CEQA Guidelines Section 15308, Class 8, Actions by Regulatory Agencies for Protection of Natural Resources.

19. 2nd Reading and Final Adoption of Ordinance No. 2025-05 Childcare Impact Fee Updates (PL)

LOCATION: Citywide

Ordinance No. 2025-05 was adopted amending City of Santa Cruz Municipal Code Chapter 18.48 "Childcare Impact Fees," modifying Section 18.48.050 Exemptions.

20. Sidewalk Vending Ordinance Administrative Amendments. Applicant: City of Santa Cruz. CEQA: Exempt per 15061(b)(3). (PL)

LOCATION: Citywide

Motion carried to introduce for publication Ordinance No. 2025-06 acknowledging the California Environmental Quality Act (CEQA) exemption and amending Santa Cruz Municipal Code (SCMC) Chapter 5.82 ("Sidewalk Vending") to clarify the definition of an "Enforcement Official," to specify the time period within which a vendor may receive citations before a permit may be revoked, to reduce the number of citations resulting in impoundment from four to three, to clarify and update restricted vending times and locations, and to provide clearer distinctions between roaming and stationary vending locations.

Public Hearings

21. Public Safety Impact Fee Nexus Study and Proposed Fees Update (FD/PD)

LOCATION: Citywide

This item was continued to the April 22nd Council meeting and was not discussed.

22. 313 Swift Street (Application No. CP24-0104) – Assessor's Parcel Number 003-161-32 – Request for 1) Acknowledgement of the Environmental Determination and Adoption of a Mitigated Negative Declaration and Mitigation Monitoring and Reporting Program (MMRP) Pursuant to Section 15074 of the California Environmental Quality Act (CEQA); and 2) Consideration of the Application for a Planned Development Permit, Coastal Permit, Design Permit, and Heritage Tree Removal Permit to Allow Construction of a New, Four-Story, Approximately 120,604 Square-Foot Multifamily Educator Workforce Housing Project Encompassing Approximately 100 Residential Units, Approximately 119 Parking Spaces, New Landscaping, and Associated Site Modifications, Including the Removal of Up to Six (6) Heritage Trees, on a Site Located in the P-F/CZ-O (Public Facilities/Coastal Zone Overlay) Zoning District, Based on the Findings and Conditions of Approval Listed In Exhibit "A." (Environmental Review: Initial Study/Mitigated Negative Declaration). (Applicant/Filed: Santa Cruz City School District/June 27, 2024) (PL)

LOCATION: District 6

Senior Planner T. Maier gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. The following people spoke.

Unidentified person
Kris Munro
Sam Rawlins
Kyle Kelley
Garrett
Jeanine Roth

Mayor Keeley closed the public comment period.

Public Hearings (continued)

22. 313 Swift Street (Application No. CP24-0104) (PL) LOCATION: District 6 (continued)

MOTION: Councilmember Golder moved, seconded by Vice Mayor Kalantari-Johnson, to adopt Resolution No. NS-30,449 acknowledging the environmental determination and adopting the Mitigated Negative Declaration and Mitigation Monitoring and Reporting Program (MMRP), and approving the Planned Development Permit, Coastal Permit, Design Permit, and Heritage Tree Removal Permit to allow construction of a new, four-story, approximately 120,604 square-foot multifamily educator workforce housing project encompassing approximately 100 residential units, approximately 119 parking spaces, new landscaping, and associated site modifications, including the removal of up to six (6) Heritage trees, on a site located in the P-F/CZ-O (Public Facilities/Coastal Zone Overlay) zone district, subject to the attached conditions of approval, with the following additional direction:

- Prior to occupancy of the Swift Street project, direct staff to return to Council with a modification to Municipal Code Chapter 10.46 that provides an exemption to the requirement for provision of METRO passes for school district projects that enter into a Transportation Demand Management agreement with the City.

- Temporary access to Derby Park shall remain open during project construction when feasible and safe.

- Coordinate with the Planning Department at the building permit stage to determine whether micro filters can be conveniently incorporated in the washing machine discharge design, taking into account space, maintenance, and other considerations.

Principal Transportation Planner C. Gallogly responded to Council questions.

Director of Planning and Community Development L. Butler responded to Council questions.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

General Business

23. 2025-2030 City of Santa Cruz Local Hazard Mitigation Plan and Climate Adaptation Plan (CM)

    LOCATION: Citywide

Sustainability and Resiliency Officer T. Wise-West gave a presentation responded to Council questions.

Mayor Keeley opened the public comment period. The following person spoke.

Garrett

Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Vice Mayor Kalantari-Johnson, to adopt Resolution No. NS-30,450 approving and adopting the 2025-2030 City of Santa Cruz Local Hazard Mitigation Plan and Climate Adaptation Plan and directing and authorizing the appropriate City representatives to transmit a certified copy of this resolution to the Federal Emergency Management Agency.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

General Business (continued)

24. Consideration of the Proposed 5-year Roadmap for West Cliff to Advance the Community's 50-year Vision for West Cliff (CM/PW)

    LOCATION: Districts 3 and 6

Assistant City Manager M. Templeton gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. The following people spoke.

Unidentified person
Garrett

Mayor Keeley closed the public comment period.

MOTION: Councilmember Golder moved, seconded by Vice Mayor Kalantari-Johnson, to adopt the 5-year Roadmap for West Cliff.

Director of Public Works N. Nguyen responded to Council questions.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Adjournment – Councilmember Golder moved, seconded by Councilmember Newsome, to adjourn. By consensus City Council adjourned at 1:28 p.m.

RESPECTFULLY SUBMITTED: ss/Julia Wood, Deputy City Clerk Administrator,
ATTEST: ss/Bonnie Bush, City Clerk Administrator, APPROVED: ss/Fred Keeley, Mayor.

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